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General Comment

I believe that if generative AI is to become a fixture in our society it will need to be subjected to much more intense scrutiny and regulation. As it currently stands even the founders and leaders of this emerging technology admit that it is built off the back of copyrighted works both written and illustrated almost entirely without compensation to the original producers or copyright holders of said works. It is and should be unlawful for any person or company to take copyrighted works without license and use them to sell their own competing product. Whether the output of generative AI models is a form of fair use is irrelevant at this stage, as the nature of that output being predicated on unlawful theft of material should be considered as making the output fruit of the poisonous tree. Further, the nature of these models is harmful to the industries they function within. Now, rather than compete against other writers and artists within a local area, often with strictly limited availability that promotes competitive practices and a healthy diversity of providers, this technology instead seems to be tailor-made to pool consumers towards a handful of monopolistic companies with global reach at the expense of entire industries. If it is in any way allowed to be ruled fair use for these models to freely take copyrighted work for their commercial purposes, it is then not a matter of if industries will collapse into AI-controlled monopolies, but a matter of when. Additionally, this technology comes with a not insignificant energy expense tied to its active use. It is only right and fair that this too should be subject to scrutiny and regulation as any other company is. The lack of a physical product does not excuse it from responsibility for its very physical waste, typically in the form of energy consumption and emissions.